

shall file a joint statement identifying any issues remaining in dispute and requiring Court resolution. If all issues are resolved, the parties shall jointly notify the Court and the hearing shall be taken off calendar. Failure to do these may result in an order to show cause re: sanctions not to exceed \$1,500.”

It does not appear that any such joint statement has been filed. Therefore, the Court cannot tell whether there is any remaining dispute to be resolved. In the absence of a definite dispute, the motion shall be taken off calendar.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2506657	DIEJOMAOH VS VOLKSWAGEN GROUP OF AMERICA, INC.	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

The dealer’s demurrer to the 4th cause of action for negligent repair is sustained with 21 days’ leave to amend.

Analysis:

In general, there is no recovery in tort for negligently inflicted financial harm unaccompanied by physical or property damage. (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal. 5th 905, 922.) “Not all tort claims for monetary losses between contractual parties are barred by the economic loss rule. But such claims are barred when they arise from — or are not independent of — the parties’ underlying contracts.” (*Id.*, p. 923.) Here, Plaintiff fails to demonstrate that Defendant breached any duty independent of its contractual obligation to perform warranty repairs. The alleged negligence is a failure to perform the repair competently, that is, a duty that flows directly from the service contract under the warranty. Plaintiff’s claim that Defendant performed this duty negligently is a claim for contract breach, not a separate tort.

As the plaintiff notes, the Supreme Court in *Sheen* acknowledged that it has “allowed for tort recovery in some cases involving insurance policies and contracts for professional services.” (*Sheen*, p. 929; and see p. 933.) The *Neel* case on which the Supreme Court relies identifies doctors, lawyers, accountants, and stockbrokers as examples of those rendering professional services. (*Neel v. Magana, Olney, Levy, Cathcart & Gelfand* (1971) 6 Cal.3d 176, 188.) From those examples, it does not appear that the Supreme Court’s use of “professional services” extends to automobile repair.